



ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ ගැසට් පත්‍රය

අති විශේෂ

# The Gazette of the Democratic Socialist Republic of Sri Lanka

## EXTRAORDINARY

අංක 2396/32 - 2024 අගෝස්තු මස 07 වැනි බදාදා - 2024.08.07  
No. 2396/32 - WEDNESDAY, AUGUST 07, 2024

(Published by Authority)

## PART I : SECTION (I) — GENERAL

### Government Notifications

#### SRI LANKA TELECOMMUNICATIONS ACT, No. 25 OF 1991

REGULATIONS made by the Minister of Technology under Section 71 (1) read with Section 17 (10) of the Sri Lanka Telecommunications Act, No. 25 of 1991 as amended by Sri Lanka Telecommunications (Amendment) Act, No. 27 of 1996 and Sri Lanka Telecommunications (Amendment) Act, No. 39 of 2024.

**RANIL WICKREMESINGHE,**  
President,  
Minister of Technology.

Colombo,  
7th August, 2024.

#### Regulations

1. These Regulations shall be cited as the Telecommunications Infrastructure Sharing Regulations No. 1 of 2024
2. These Regulations shall apply to all operators licensed under Section 17 (2) of the Act.
3. Radio Access Network (RAN) sharing will include both Multi Operator Radio Access Network (MORAN) and Multi Operator Core Network (MOCN) methodology.

4. The sharing of antenna structures shall be in accordance with the Guidelines issued by the Commission in addition to these Regulations.
5. Sharing of the core network between two operators is not permitted under these Regulations.
6. The objective of these Regulations shall be :
  - (i) to reduce the inefficient and unnecessary duplication of existing telecommunications infrastructure;
  - (ii) to reduce up-front and operating costs of all Telecommunications operators.
  - (iii) to encourage socially efficient investment in infrastructure and avoid wasteful replication of telecommunications infrastructure;
  - (iv) to promote fair competition through the sharing of telecommunications infrastructure that is not easily replicable and whose multiplication raises environmental and general public concerns;
  - (v) to provide benefits to consumers in terms of price, quality and availability of services and attempt to alleviate their concerns regarding the safety of the environment;
  - (vi) to address the concerns of the public and the environmental and planning authorities over the environmental impact of multiplication of telecommunications infrastructure;
  - (vii) to promote more environmentally friendly practices, through the minimization of constructing and maintaining of telecommunications infrastructure.
7. These Regulations provide for a Telecommunications Infrastructure Sharing regime that enables the sharing of the applicable telecommunications infrastructure between the Requesting operators, Sharing operators and the Owning operators.

## 8. GENERIC PRINCIPLES OF INFRASTRUCTURE SHARING

- 8.1 Any Owning operator that owns, operates or uses a telecommunications infrastructure may share its infrastructure with a Requesting operator in accordance with respective license conditions on mutually agreed commercial and technical terms
- 8.2 Any Owning operator that owns, operates or uses telecommunications infrastructure is obliged to negotiate and enter into an ISA, upon request, and provide access to its telecommunications infrastructure.
- 8.3 In case of RAN Sharing prior agreed commercial and technical terms of the mandatory ISA together with a sharing application form should be submitted for the approval of the Commission.
- 8.4 In order to promote fair competition, the Commission shall evaluate the competition-related aspects and anti-competitive behaviour of operators.
- 8.5 Owning or Sharing Operator, should continue to ensure compliance with licence obligations about service provisioning to end users, QoS requirements, roll-out and environmental obligations, monitoring and compliance to all applicable laws and agreements, if required.
- 8.6 Operators shall maintain the Telecommunications Infrastructure Sharing Database and be accessible to other Operators/Providers. The required database information shall be determined by the Commission from time to time and shall include, but not be limited to, available capacities of active and passive telecommunications infrastructure elements, physical space, site geographical locations, *etc.*

## **9. OBLIGATIONS ON THE REQUESTING/OWNING OPERATORS WITH REGARD TO ISA**

### **9.1. General provisions on negotiation process**

- 9.1.1 Operators wishing to share telecommunications infrastructure shall have the right or obligation (if mandatory) to negotiate and come to an agreement on the terms and conditions of an ISA.
- 9.1.2 The Owing Operator shall share telecommunications infrastructure with other Sharing Operators on a first-come first-served basis, determined by the chronological order in which it receives requests for sharing its telecommunications infrastructure.
- 9.1.3 Telecommunications infrastructure sharing shall be provided based on the principles of impartiality and non-discrimination.
- 9.1.4 All negotiations for ISA must be conducted by all parties in utmost good faith.
- 9.1.5 The Owing Operator of telecommunications infrastructure must not:
- a) obstruct or delay negotiations;
  - b) refuse to provide information relevant to an ISA, including information necessary to identify the telecommunications infrastructure needed.
- 9.1.6 Negotiating Operators should provide sufficient information to each other during the negotiation process on issues related to telecommunications infrastructure sharing. Such information shall be treated as confidential by the negotiating parties at all times. Response to any such request should be prompt to avoid delay.
- 9.1.7 Every ISA shall be in writing and shall specify the contractual terms and conditions agreed on by the parties.
- 9.1.8 If the Commission directs to share infrastructure of any Operator, such Operators are obliged to negotiate the sharing of the mandated telecommunications infrastructure.
- 9.1.9 Owing Operators designated as having Significant Market Power (SMP) in the infrastructure market are required to publish a Reference Offer approved by the Commission.

### **9.2 Sharing Agreement Negotiation Procedure**

- 9.2.1 The Owing Operator must have a Sharing Request form as specified in Annex A that can be instantly provided to the Requesting Operator.
- 9.2.2 The Requesting Operator wishing to share telecommunications infrastructure must complete and submit a Sharing Request form to the Owing Operator.
- 9.2.3 Within 7 working days from the date of submission of the form by the Requesting Operator, the Owing Operator must complete the feasibility study and provide a decision to the Requesting Operator in writing as per the completed form given in Annex B.

9.2.4 The decision may be to:

- a) confirm the availability of telecommunications infrastructure and proposal to start the procedure to complete an ISA; or
- b) confirm the availability of the telecommunications infrastructure subject to suggested reasonable amendments to the application and proposed date to start the procedure to complete an ISA; or
- c) reject a Sharing Request.

9.2.5 If the feasibility study has been completed and availability of the facility is confirmed, the time frame for completing an ISA should not exceed 7 working days from:

- a) the date of the acceptance letter of the Owing Operator in case of a decision on the availability of the facility, or
- b) the date the Owing Operator receives the letter from the Requesting Operator accepting the suggested amendments in case of decision on availability subject to reasonable amendments.

9.2.6 The commencement date for sharing the requested telecommunications infrastructure must be within a reasonable time from the date of signing the ISA by both parties but not exceeding 30 working days, taking into account the reasonable time to develop or alter the requested telecommunications infrastructure, if required.

9.2.7 Where the Requesting Operator requests IS and the existing capacity is fully utilized, the Owing Operator shall extend the capacity to allow for sharing, provided the telecommunications infrastructure is technically capable of withstanding the additional loads.

9.2.8 The cost incurred by the Owing Operator to develop or alter the requested telecommunications infrastructure shall be borne by the Sharing Operator on mutually agreed terms.

- a) The Requesting Operator shall be obliged to pay the Owing Operator a payment to compensate for the proportion of costs efficiently incurred by the Owing Operator in carrying out the upgrade and alteration works to the facilities requested for sharing.
- b) The development or alteration required and the related cost should be jointly assessed by the parties or, where the parties cannot agree or consider it to be most practical, then by an independent third party expert appointed by agreement of the parties or failing such agreement, by the Commission.

### 9.3 The details of the ISA

The ISA shall have the following minimum requirements :

- a) the type of the ISA;
- c) the key terms of the ISA;
- d) the timing of key process steps;
- e) Commercial (pricing) and technical (QoS, sharing architecture, maintenance arrangements) information

## **10. ISAs RELATED TO RAN SHARING**

Regulations 11,12,13 and 14 shall apply only to ISAs relating to RAN sharing.

### **11 Submission of a Draft of ISA to the Commission**

- 11.1 Applicants are obliged to submit the proposed ISA to the Commission for review and approval before such agreement is implemented. The Applicants must submit their application consistent with the principles set out in these Regulations.
- 11.2 The Commission shall publish the preliminary decision within 15 working days from the date of receipt if there are no issues which require further assessment and final approval of the ISA will be made within 10 days from the closing of public comments for the proposed ISA.
- 11.3 The Commission holds the final authority over the approval of any proposed agreement and has the right to reject any agreement it deems not to be in the public interest. For the avoidance of doubt, any proposed amendments to existing ISAs, including proposals to terminate ISAs, must be submitted to the Commission for its prior approval, before such amendments or termination of the ISA can take effect.
- 11.4 All applicants must meet licensing obligations and other rules and regulations applicable to them.

## **12 OBLIGATIONS OF THE COMMISSION ON ISA REVIEW/APPROVAL PROCESS**

The procedure set out below will be applicable for the approval of the proposed ISA and the amendments to approved ISAs. If the applicants fail to provide the requested information, the Commission has the right to suspend the approval process.

### **12.1 ISA Review Process**

The review process of the Commission in assessing draft ISAs consists of six stages.

#### ***12.1.1 STAGE 1 -Notification to the Commission***

- a) Owning and Sharing Operators wishing to be engaged in ISAs must notify the Commission by submitting a formal joint application ('Application') given in Annex C together with a final ISA.
- b) The information shall be submitted as described in Regulation 13.
- c) Upon receipt of the application, the Commission will assess whether a submitted Application is complete or not and inform the Applicants of the outcome of the completeness check and whether the Commission will commence with its regulatory assessment of the proposed ISA.
- d) Any incomplete Applications will be deemed not to have been submitted and will be rejected by the Commission by default.

#### ***12.1.2 STAGE 2- Regulatory assessment of expected benefits and risks***

- a) Once the completeness of the Application is confirmed, the Commission will conduct an assessment of the potential benefits and the risks to competition and consumers more generally that could arise as a result of the proposed ISA.

- b) To facilitate this assessment, the Commission may seek further information and clarification from the Applicants. Applicants are required to respond to any information request from the Commission within the timeline stated in the specific request for information.
- c) The Commission's decision to clear or refuse a proposed ISA will depend on its assessment of the net impact of the ISA on the relevant market(s).
- d) To undertake this assessment and identify the potential risks to competition and benefits to customers, the Commission will be guided by the following process:
  - (i) Defining the relevant market(s)  
The Commission will identify the product/service and geographic market(s) that are likely to be affected as a result of the proposed ISA. The Commission's economic assessment will then be based on the expected outcomes in these identified market(s).
  - (ii) Establishing the counterfactual scenarios  
The Commission will adopt a counterfactual analysis to undertake its assessment. Under this framework, the Commission will identify the potential competitive outcomes in the market as a result of the proposed ISA ("the factual scenario") compared to a situation without the proposed ISA ("the counterfactual scenario"). The counterfactual scenario will be determined by the Commission on a case-by-case basis, depending on the state of the market at the time of the proposal, and the terms of the ISA.
  - (iii) Identifying the potential risks to competition  
The Commission will follow a set of key principles to identify the potential risks of approving a proposed ISA. These principles cover:
    - A. the likely impact of the proposed ISA on direct competition between the Applicants;
    - B. the likely impact of the proposed ISA on the competitiveness of other Operators and Providers and
    - C. the likely impact on outcomes in the telecommunications sector of Sri Lanka.
  - (iv) If the Commission concludes that a proposed agreement leads to significant negative outcomes in the telecommunications market or poses a risk to national security, the Commission holds the unequivocal right to refuse the agreement.
  - (v) Where the Commission identifies potential risks to competition, it may require the Applicants to offer some commitments and remedies to deal with these concerns.
  - (vi) Identifying the potential efficiencies and customer benefits  
The Commission's assessment should consider the potential benefits that could arise from the proposed ISA, relative to the counterfactual. These potential benefits would ultimately be expected to accrue to the end-users in the relevant downstream market(s) and underpin the Commission's view that ISA not leading to curtailment of effective competition.
  - (vii) Assessing the net impact of the proposed ISA  
The Commission will employ methodologies set out in Competition Rules to determine whether the proposed ISA is likely to give rise to a net benefit, based on the assessment above. Where the Commission identifies the risk of anticompetitive or other negative effects, it may

require the sharing parties to propose remedies and commitments to avoid these concerns. If the remedies do not sufficiently address the Commission's concerns, the Commission may refuse the proposed ISA.

#### **12.1.3 STAGE 3 -Preliminary Decision**

Based on the regulatory assessment, the Commission publishes a preliminary decision on the proposed ISA within 15 working days of receiving comprehensive and complete responses to all information requests issued by the Commission during the Stage 2.

After conducting the assessment, the Commission would decide one of the following three preliminary positions:

- a) The proposed ISA will be cleared without objection; or
- b) The proposed ISA will be cleared subject to certain remedies and commitments by the Applicants to address any identified concerns, or
- c) The proposed ISA will be refused due to potentially adverse effects on competition or consumers more generally.

#### **12.1.4 STAGE 4 - Public Notice**

After publishing its preliminary decision, the Commission will invite the Applicants, as well as other relevant stakeholders, including market competitors, to comment on the Commission's preliminary views and to submit evidence-based arguments as to why they agree or disagree with the Commission's preliminary decision within seven working days from the date of publication.

The Commission may then publish these responses, subject to confidentiality considerations, giving the Applicants an opportunity to provide responses to the industry comments.

#### **12.1.5 STAGE 5- Proposed Remedies by Applicants**

The Applicants may be required to offer, or may choose to offer, to the Commission, commitments to address any identified concerns. This would be the case if:

- a) In its preliminary decision, the Commission identifies potential concerns with the proposed agreement but recognizes the scope for certain remedies to address those concerns; or
- b) The Applicants proactively choose to make commitments.

#### **12.1.6 STAGE 6 - Final decision of the Commission**

On the basis of wider stakeholder comments and any commitments made by the Applicants, the Commission shall publish its final decision on its official website. The Commission expects to issue its final decision within 10 working days from the date of closing the public comments.

The final decision would be either

- a) to approve the proposed ISA (either unconditionally, or subject to remedies), or
- b) to refuse approval of the ISA.



### 13. INFORMATION REQUIREMENTS IN THE ISA APPLICATION

#### 13.1 The details of the proposed ISA

- i. The ISA shall have the following minimum requirements :
  - a) the parties to the ISA;
  - b) the type of the ISA;
  - c) the key terms of the ISA;
  - d) the timing of key process steps;
  - e) Commercial (pricing) and technical (QoS, sharing architecture, maintenance arrangements) information
- (ii) The parties shall submit all relevant licences and approvals obtained from the Commission pertaining to the proposed ISA
- (iii) The parties shall submit a copy of the final ISA, as part of their joint application.

#### 13.2 The strategic and economic rationale for the ISA

Applicants should describe the strategic motivation for entering into the proposed ISA. This must include:

- a) the extent of expected CAPEX and OPEX savings as a result of the ISA;
- b) the expected impact of the ISA on meeting coverage obligations and improving QoS.  
Where possible, the Applicants must also identify to what extent these savings and service improvements can translate to efficiencies and benefits for customers in the relevant market(s).
- c) To support this assessment, the Applicants must provide any documents prepared internally, or by external consultants, that discuss such expected efficiencies or relevant customer benefits.

#### 13.3 An assessment of the competition risks and proposed mitigation strategies

Applicants should describe the kinds of competition risks that the proposed ISA could potentially give rise to. These must include the risks identified in these regulations, as well as other risks that the Applicants believe to be relevant and potentially substantial.

For each of the competition risks identified, the Applicants must either:

- a) provide potential remedies to mitigate the impact of this risk; or
- b) briefly describe why they believe that the proposed ISA is unlikely to give rise to the risk.

#### 13.4 Details of sharing of commercially sensitive information

This should include any internal process/protocol that will be put in place to restrict the flow of commercially sensitive information within different departments of the Applicants. In particular, the plan must provide an insight on how the following processes will be managed under the sharing agreement:

- a) operations;
- b) performance reporting;
- c) capacity forecasting;
- d) technology strategy and roadmaps;
- e) shared network investment decisions.

#### 13.5 Resilience plan

Applicants should provide a detailed Network Resilience Plan for the shared infrastructure and a Disaster Recovery Plan, or updates thereof.



### **13.6. Forward looking investment and roll-out plans**

The Applicants must individually submit their forward-looking investment and roll-out plans to allow the Commission to assess their individual incentives in the presence and absence of the proposed ISA.

### **13.7 Approach for identifying and mitigating security risks**

The Applicants must provide a detailed plan to tackle any potential concerns that may arise as a result of the proposed ISA in meeting the requirements on network security. Even if Applicants believe that the proposed ISA is unlikely to give rise to security concerns, the Application must still address the same and explain why they are unlikely to be affected.

### **13.8 Continued compliance with regulatory and license obligations**

The Applicants must demonstrate that they will continue to comply with the regulatory and legal obligations as set out in their Licenses, other Rules and regulations.

### **13.9 An “Exit plan”**

The Applicants should provide a high-level overview of the plan if the Applicants wish to dissolve the ISA. This plan must indicate, broadly, the steps that will be taken to transition from the provision of services over the shared network to provision of the services over separate networks, in a way that prevents service disruption and any possible harm to consumers.

14. The flow chart setting out the regulatory procedure to be followed in the review process of ISA for RAN sharing is annexed in Appendix 1 for guidance.

## **15. INFRASTRUCTURE SHARING PRICING**

- (i) Prices for sharing of telecommunications infrastructure shall be fair, reasonable and based on cost.
- (ii) The Commission may require any operator to provide justification for their sharing facilities and component prices and may, where appropriate, require that any or all prices be adjusted so that they are in accordance with the industry prices or prices determined by the Commission in accordance with these Regulations and the Act

## **16. DISPUTE RESOLUTION**

- (i) The Commission may conduct the dispute resolution process entirely on submission of documents and if necessary the parties may be called for an oral hearing.
- (ii) The Commission may resolve the following disputes arising between the parties in accordance with the provisions of these Regulations if such a dispute is referred to the Commission within the deadlines stipulated in each respective subparagraph below:
  - (a) The Owning Operator does not reply to a Sharing Request within the timeframe specified in these Regulations. Submission of the dispute to the Commission must occur within 5 working days of the deadline for the reply from the Owning Operator;
  - (b) The Requesting Operator must submit to the Commission if it wishes to dispute:
    - (i) within 5 working days from the date of requesting operator receives the Owning Operator’s notice/ letter proposing amendments; or
    - (ii) within 5 working days from the date of receiving the letter rejecting the Sharing Request.

- (c) If the parties do not enter into an ISA, submission of the dispute to the Commission must occur within 5 working days of the deadline for finalizing the ISA;
  - (d) After the Requesting Operator has accepted the Owning Operator's proposed amendments and the parties do not enter into an ISA, the submission of the dispute to the Commission must occur within 5 working days of the deadline for finalizing the ISA;
  - (iii) The Referring Party must submit its complaint in writing to the Commission with all supporting documentation and evidence, including correspondence between the parties and statements from any witnesses it wishes to rely upon.
  - (iv) The Commission must acknowledge receipt of the submission within 3 working days of receipt of the submission.
  - (v) Within 10 working days of receipt of the submission the Commission must determine if the Referring Party has a valid complaint or not. If the Commission determines that the Referring Party does not have a valid complaint, it must write to the Referring Party within 15 working days of receipt of the submission explaining in detail its reasons for considering the Referring Party's submission and case to be invalid.
  - (vi) If the Commission determines that the Referring Party has a valid complaint it will forward the dispute to the Other Party and request a response within 7 working days from the date of the Commission forwarding the dispute to the Other party, unless the Commission specifies otherwise.
  - (vii) The Other Party must respond to the Commission within 7 working days from the date on which the Commission forwarded the dispute to the Other party, unless the Commission specifies otherwise.
  - (viii) The Other Party's response must address each point raised by the Referring Party and must provide full supporting documentation and evidence, including correspondence between the parties that may not have been relied upon by the Referring Party and statements from any witnesses it wishes to rely upon.
  - (ix) Upon receipt of the Other Party's response the Commission will consider whether further documentary evidence is required and make written requests for same from either or both parties.
  - (x) Upon receipt of all required documentary evidence the Commission will notify the parties of the expected date of its decision on the resolution of the dispute.
  - (xi) If the Commission determine that the Owning Operator should share the telecommunications infrastructure in question, the parties must enter an IS Agreement following the procedures set out in these Regulations.
17. Competition Rules published by the Commission shall apply for an assessment of the anticompetitive impact under these Regulations.
18. The Commission may issue directives to the operators for sharing of infrastructure as per the Act for implementation of these Regulations.

## 19. INTERPRETATIONS

In these Regulations, unless the context otherwise requires:

**“Act”** means the Sri Lanka Telecommunications Act, No. 25 of 1991 and amendments thereto

**“Applicants”** means the participating parties in an ISA - Owning Operator and Sharing Operator.

**“Commission”** means the Telecommunications Regulatory Commission of Sri Lanka Commission established under Act No. 27 of 1996.

**“Infrastructure”** means a telecommunications facility including a line, submarine cable, distribution point, duct, pit, tunnel, manhole, tower, mast, pole, antenna structure and active network used for the purpose of providing telecommunication service

**“Infrastructure Sharing Agreement (ISA)”** means an agreement between an Owning Operator and a Sharing Operator for sharing the Owning Operator’s telecommunications network infrastructure (passive and active).

**“Negotiating Operator”** means a Requesting Operator and Owning Operator negotiating an ISA.

**“Owning Operator”** means an Operator that owns, operates or uses a telecommunications network infrastructure.

**“Provider”** means a person authorized by a licence under Section 17B to provide telecommunications services, infrastructure facilities or cable landing station facilities.

**“Radio Access Network (RAN)”** means a part of a telecommunication network that connects end user devices to the core network through a radio link.

**“Referring Party”** means a Negotiating Operator that refers a dispute to the Commission.

**“Requesting Operator”** means the licensed Telecommunications System Operator that submits a Sharing Request to an Owning Operator.

**“Sharing Operator”** means an Operator that shares the telecommunications infrastructure of an Owning Operator subject to the approved ISA.

**“Sharing Request”** means a written request from the Sharing Operator to the Owning Operator to share a telecommunications infrastructure.

12A

I කොටස : (I) ඡේදය - ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ අති විශේෂ ගැසට් පත්‍රය - 2024.08.07  
PART I : SEC. (I) - GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA - 07.08.2024

---

## INFRASTRUCTURE SHARING REQUEST FORM

(to be filled by the Requesting Operator)

### 1. Details of Requesting / Sharing Operator:

- Name of the Licensee / Company:
- License No. and Date of Issue / Renewal:
- Type(s) of Telecommunication Services Provided by the Requesting/Sharing Operator:

### 2. Details of the Owning Operator:

- Name of the Licensee / Company:
- License No. and Date of Issue / Renewal:
- Type(s) of Telecommunication Services Provided by the Owning Operator:

### 3. Details of Approval by the Owning Operator:

| No. | Items                                                                                     | Description |
|-----|-------------------------------------------------------------------------------------------|-------------|
| 1.  | Reference Number of the Request                                                           |             |
| 2.  | Type of the Infrastructure(s)                                                             |             |
| 3.  | Location / Address of the Infrastructure                                                  |             |
| 4.  | Purpose of Sharing the Infrastructure                                                     |             |
| 5.  | Duration of Sharing                                                                       |             |
| 6.  | Date of Request by the Requesting/Sharing Operator                                        |             |
| 7.  | Last Date of Approval / Rejection by the Owning Operator                                  |             |
| 8.  | Last date of Negotiation                                                                  |             |
| 9.  | Inspection or Survey to the Infrastructure is required by the Requesting/Sharing Operator |             |
| 10. | Any Other Information                                                                     |             |

.....  
Authorized Signature of the Requesting / Sharing Operator

INFRASTRUCTURE SHARING APPROVAL/REJECTION FORM

1. Details of Infrastructure Requesting / Sharing Operator:

- a. Name of the Operator / Company :
- b. License No. and Date of Issue / Renewal:
- c. Type(s) of Telecommunication Services Provided by the Requesting / Sharing Operator:

2. Details of the Owning Operator:

- a. Name of the Operator / Company:
- b. License Number and Date of Issue / Renewal:
- c. Type(s) of Telecommunication Services Provided by the owning operator:

3. Details of Approval by the Owning Operator:

| Sl. No. | Items                                                         | Description |
|---------|---------------------------------------------------------------|-------------|
| 1.      | Reference Number of the Requesting / Sharing Operator Request |             |
| 2.      | Reference Number of Approval                                  |             |
| 3.      | Type of the Infrastructure(s)                                 |             |
| 4.      | Location / Address of the Infrastructure                      |             |
| 5.      | Duration of Sharing                                           |             |
| 6.      | Date of Agreement / Negotiation                               |             |
| 7.      | Any Other Information                                         |             |

**4. Details of Rejection by the Owning Operator:**

| SI. No. | Items                                                         | Description |
|---------|---------------------------------------------------------------|-------------|
| 1.      | Reference Number of the Requesting / Sharing Operator Request |             |
| 2.      | Reference Number of Rejection                                 |             |
| 3.      | Type of the Infrastructure(s)                                 |             |
| 4.      | Location / Address of the Infrastructure                      |             |
| 5.      | Duration of Rejection                                         |             |
| 6.      | Any Other Information                                         |             |

.....  
Authorized Signatory of the Owning Operator



INFRASTRUCTURE SHARING JOINT APPLICATION FORM

1. General information of the Applicants

A. Details of Requesting / Sharing Operator:

- a. Name of the Licensee / Company:
- b. License No. and Date of Issue / Renewal:
- c. Type(s) of Telecommunication Services Provided by the Requesting / Sharing Operator:

B. Details of the Owning Operator:

- a. Name of the Licensee / Company:
- b. License No. and Date of Issue / Renewal:
- c. Type(s) of Telecommunication Services Provided by the Infrastructure Provider:

2. Scope of the proposed ISA

Details of the Sharing Infrastructure:

| No. | Items                                                                                                                                                      | Description |
|-----|------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|
| 1.  | Reference Number of the Request                                                                                                                            |             |
| 2.  | Type of the Infrastructure(s)                                                                                                                              |             |
| 3.  | Sharing Architecture / Design                                                                                                                              |             |
| 4.  | Location / Address of the Infrastructure                                                                                                                   |             |
| 5.  | Purpose / Rationale of Sharing the Infrastructure<br>(Please provide the details as per Regulation 13.2, 13.3, 13.4 and Investment plan, roll out plan)    |             |
| 6.  | A brief assessment of the likely risks identified<br>(Please provide the details as per Regulation 13.3, 13.5, 13.7, 13.9 and mitigating regulatory risks) |             |

| No. | Items                                                                                  | Description |
|-----|----------------------------------------------------------------------------------------|-------------|
| 7.  | Duration of Sharing                                                                    |             |
| 8.  | Date of Request by the . Requesting / Sharing Operator                                 |             |
| 9.  | Last Date of Approval / Rejection by the Owning Operator                               |             |
| 10. | Proposed draft ISA                                                                     |             |
| 11. | Inspection or Survey of the Infrastructure is required the Requesting/Sharing Operator |             |
| 12. | Any Other Information                                                                  |             |

.....  
Authorized Signatory of the Requesting Operator

.....  
Authorized Signatory of the Owning Operator

**Instructions :**

1. A duly completed application must be submitted to the Director General with a copy to the designated Division of TRCSL.

EOG 08 - 0093